



CHAPTER ccxxiv.

An Act to enable the Urban District Council of Wood Green to acquire part of Wood Green Common for the purposes of a dust destructor and to make further provision with regard to the electric light undertaking of the Council and for the improvement health and local government of the district and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the district of Wood Green in the county of Middlesex is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Wood Green Urban District Council (in this Act called "the Council") :

And whereas by the Wood Green Electric Lighting Order 1902 confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1902 the Council were empowered to produce and supply electrical energy within the district for public and private purposes and it is expedient to make further provision in regard to the supply of electrical energy by the Council :

And whereas by a scheme of the Enclosure Commissioners for England and Wales made pursuant to the Metropolitan Commons Acts 1866 and 1869 and confirmed by the Metropolitan Commons Supplemental Act 1882 the Common known as Wood Green was placed under the management of the Tottenham Local Board subject to the rights claimed by the lord of the manor and to the rights of common of pasturage claimed by the owners and occupiers of freehold and copyhold land in the parish of Tottenham :

And whereas by the Tottenham Local Board (Division of District) Act 1888 the Wood Green district was constituted a separate district and the powers of the Tottenham Local Board in

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A.D. 1903. — respect to the said common were vested in the Wood Green Local Board of whom the Council are the successors :

And whereas by the Wood Green Local Board Act 1889 the Wood Green Local Board were empowered to purchase by agreement or compulsion the rights aforesaid in over or relating to commons within the district :

And whereas by the Great Northern Railway Act 1889 the Great Northern Railway Company were authorised to acquire part of the said common of Wood Green but it was provided that certain lands coloured red on a plan in the said Act referred to and containing one acre three roods and twenty-six perches should be purchased by the company and should form part of the common save as to a house thereon standing and the land surrounding the same for a space of twenty feet on every side thereof which should vest in the Wood Green Local Board with a proviso that if the said Board should at any time pull down the said house and should not erect another house or building in place thereof the land forming the site thereof and the said space surrounding the same should likewise become part of the common :

And whereas the said lands coloured red by reason of their proximity to the railway are suited to be the site of a dust destructor and it is expedient that the Council shall be empowered to acquire the rights if any existing therein and to appropriate the lands for the purposes of a dust destructor and other buildings connected therewith or subsidiary thereto :

And whereas a plan showing the said lands coloured red the rights wherein are to be purchased or acquired for the purposes of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees of and of the occupiers have been duly deposited with the clerk of the peace for the county of Middlesex which plan and book of reference are hereinafter referred to as "the deposited plans and book of reference" :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and sanitary matters within the district and that the powers of the Council in relation to the health local government and improvement of the district should be enlarged as by this Act provided :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-sixth day of November one

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thousand nine hundred and two after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in The Sentinel being a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning that meeting resolved to promote the Bill for this Act: A.D. 1903.

And whereas such resolution was published twice in the said Sentinel and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-eighth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill for this Act in the Offices of the Houses of Parliament:

And whereas the owners and ratepayers of the district by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited for all purposes as the Wood Green Urban District Council Act 1903. Short title.

2. This Act is divided into Parts as follows (that is to say):— Division of Act into Parts.

Part I.—Preliminary.

Part II.—Electricity.

Part III.—Lands.

Part IV.—Recreation Grounds.

Part V.—Streets Buildings and Sewers.

Part VI.—Sanitary Provisions.

Part VII.—Infectious Disease.

Part VIII.—Milk Provisions.

Part IX.—Finance.

Part X.—Miscellaneous.

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Limits of
Act.

Interpreta-
tion.

3. This Act except where otherwise provided shall apply exclusively to the district.

4. In this Act unless the subject or context otherwise require—

“The district” means the urban district of Wood Green in the county of Middlesex;

“The Council” means the urban district council of the district;

“The clerk” “the surveyor” “the medical officer” and “the inspector of nuisances” respectively mean the clerk the surveyor the medical officer of health and the inspector of nuisances appointed by the Council in pursuance of the powers of any public Act and “medical officer” shall include any deputy medical officer of health duly appointed;

“The district fund” and “the general district rate” respectively mean the district fund and the general district rate of the district;

“Dairy” includes any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale;

“Dairyman” includes any cowkeeper purveyor of milk or occupier of a dairy;

“The Public Health Acts” means the Public Health Act 1875 and any Act amending the same;

“Owner” and “street” have the same respective meanings as they have in the Public Health Act 1875;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction.

PART II.

ELECTRICITY.

Power to
supply elec-
tric fittings.

5.—(1) The Council may provide sell let for hire and fix set up alter repair and remove but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf

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whether within or without the premises to be supplied and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

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(2) Any expenses incurred by the Council in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Council under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the Council under this section shall be applied in manner provided by section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

6. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Council for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Council as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Altering date for filling up annual accounts for electric lighting.

7. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electric light or electrical power or energy from every person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges Provided that the Council shall make the same allowance to all consumers under similar circumstances.

Discount on electric lighting and power accounts.

8. The Council may refuse to supply electrical energy to any person whose payment for the supply of electrical energy is for the time being in arrear whether such payment be due to the Council in respect of a supply to the same or other premises.

Council may refuse to supply electrical energy in certain cases.

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As to supply
of electricity
where con-
sumer has
separate
supply.

9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Council a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Council such minimum annual sum as will give to the Council a reasonable return on the capital expenditure and other standing charges incurred by the Council to meet the possible maximum demand of such person. In case the Council and the person demanding such supply of electrical energy shall fail to agree the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

PART III.

LANDS.

Acquisition
of rights in
and power
to appro-
priate part
of Wood
Green Com-
mon for
erection of
a dust de-
structor.

10.—(1) The powers given by section 6 of the Wood Green Local Board Act 1889 for the Wood Green Local Board to purchase or acquire by agreement or compulsion all or any of the rights if any of the lord of the manor of Tottenham or of any other person or persons in over or relating to any common or waste lands within the district shall extend to enable the Council to purchase by agreement or compulsion such rights if any actual or contingent in over or relating to the lands coloured red on the plan referred to in section 52 of the Great Northern Railway Act 1889 including the house and its appurtenances in the said section 52 referred to which lands coloured red are delineated on the deposited plans and described in the deposited book of reference and are more particularly described in the Schedule hereto.

(2) The Council shall for the purpose of such purchase have all the powers vested in the Wood Green Local Board by the Wood Green Local Board Act 1889 save that they shall not lay out or expend for that purpose any part of the waste land funds referred to in that Act.

(3) When the said rights have been purchased or acquired the said lands shall vest in the Council and the Council may subject as hereinafter mentioned when they have acquired such rights as aforesaid in over or relating to the said lands described in the said Schedule appropriate and use the same for the purpose of erecting and maintaining a dust destructor with other buildings connected therewith or subsidiary thereto and may erect and maintain such destructor and other buildings connected therewith or subsidiary

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thereto with all proper machinery and the provisions of the Metropolitan Commons Supplemental Act 1882 and of the Wood Green Local Board Act 1889 shall cease to apply to the said lands coloured red.

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(4) The Council shall within two years after the passing of this Act if they shall appropriate the said lands coloured red or any part thereof as aforesaid expend a sum of not less than two thousand pounds upon laying out and improving the remaining part of Wood Green Common and shall also permanently dedicate for use as an open space a piece of land belonging to the Council and containing one acre three roods and three perches situate in the parish and urban district of Wood Green adjoining the main road leading from London to Enfield and being part of the grounds on the north side of the town hall.

(5) No compensation shall be payable to the owners or occupiers of freehold and copyhold lands claiming actual or contingent rights of common of pasturage over the said lands and no notice to treat shall be served under the Lands Clauses Acts in respect of such rights.

11.—(1) The Council shall construct the dust destructor authorised by this Act so that no part of the destructor house or chimney shaft shall be erected to the east of the line marked AB on the plan signed in triplicate by J. Heywood-Johnstone the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and deposited in the Office of the Clerk of the Parliaments and the Private Bill Office of the House of Commons.

For protection of Tottenham School Board.

(2) No entrance road or gates opening from Western Road into any part of the destructor premises shall be constructed between the points C and D also shown on the said plan.

12. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and

Power to retain sell &c. lands.

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A.D. 1903. — execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Application
of moneys
from sale &c.
of land.

13. The Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council. Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

PART IV.

RECREATION GROUNDS.

Council may
erect build-
ings &c.

14. The Council may in any recreation ground erect maintain furnish and equip and may remove refreshment assembly and reading rooms museums pavilions baths and conservatories and may alter temporary or permanent buildings and conveniences which may be required or convenient for the purposes of such recreation ground and the public resorting thereto and may charge for admission to any of such rooms buildings or conveniences or in respect of the use thereof or of any part or parts thereof respectively. Provided that the Council shall not charge for admission to any reading room or museum on more than twelve days in any one year nor on more than four consecutive days on any one occasion.

Chairs and
seats for
public use.

15. The Council may place or authorise any person or persons to place seats shelters or chairs in any street recreation ground or other public place for the use of the public and may provide and sell programmes of any concert or performance which may from time to time be provided by the Council therein and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto.

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16.—(1) The Council may let any refreshment rooms or other buildings in any recreation grounds with their appurtenances belonging to them or under their control to such person for such term not exceeding three years at any one time at such rent payable at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Council may think fit and the Council may sanction and permit the setting up of portable or other stalls for the sale of refreshments in any recreation grounds for such time and on such terms and conditions as they see fit and may make charges in respect of the right to set up or occupy the same.

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Power to
Council to
let refresh-
ment rooms
&c.

(2) The Council may also let any such pavilion or other building for the purposes of meetings or entertainments and may make such charge and impose such conditions as they may think fit.

17. The Council may pay or contribute towards the payment of a band of music to perform in any park or pleasure or recreation ground or building for the time being belonging to or held by the Council or elsewhere in the district as they may direct and the Council may enclose a small area within which such band shall play and make byelaws for regulating the time and place for the playing of the band the payments to be made for admission within such building or enclosure and for securing good and orderly conduct during the playing of the band Provided that the payments or contributions of the Council for or toward such band shall be paid out of the district fund and general district rate and shall not in any one year exceed an amount which would be produced by a rate of one halfpenny in the pound on the assessable value of the district to the general district rate.

Bands of
music.

18. The Council may set apart any portion of any park garden or recreation ground for the time being belonging to or held by them for cricket football tennis and other games and for the drill of volunteers yeomanry or cadets or of any military or police force or for the purposes of the delivery of speeches or the holding of meetings of public or local interest but so that the same shall be open to the public when not in use for such games or drill or other purposes.

Power to
set apart
portions of
recreation
grounds for
games.

19. The Council may provide apparatus for games and recreation for the use of the public frequenting any public parks gardens and recreation grounds within the district and may charge

Power to
provide
apparatus
for games.

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Power to
appoint
officers.

20. The Council may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Pleasure
grounds to
be deemed
streets.

21. The public parks gardens and recreation grounds within the district shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences :—

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle over driven which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot :

Every common prostitute or night walker loitering and importuning passengers for the purpose of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire :

Every person who throws or lays any dirt litter ashes or night soil or any carrion fish offal or rubbish on any street.

Expenses
and appli-
cation of
moneys re-
ceived from
admission
&c. to re-
creation
grounds.

22. All expenses incurred by the Council in the exercise of the powers of this Part of this Act shall be paid out of the district fund and the moneys (if any) received by the Council from the admission of any persons to or the occupation of any park public garden pleasure ground or recreation ground belonging to the Council or under their control and management or parts thereof respectively or under the section of this Act whereof the marginal note is " Bands of music " or from the admission of any person to any reading room pavilion conservatory assembly room or other buildings or from the letting thereof or of any chairs refreshment rooms or other

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buildings or from the sale of programmes of any performance or concert shall (after providing in the case of such performance or concert for the expenses thereof) be carried to the credit of the district fund. A.D. 1903.

PART V.

STREETS BUILDINGS AND SEWERS.

23. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. No buildings allowed till street formed.

24. No new street shall be laid out more than two hundred yards in length without an intersecting street. Intersecting streets.

25.—(1) The approval by the Council of any plan or section of any street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):— Approval of plan may be declared void after interval.

As to plans and sections approved after the passing of this Act within two years from the date of such approval; and

As to plans and sections approved before the passing of this Act within two years from the passing of this Act:

And at the expiration of those respective periods fresh notice and deposits and approval shall unless the Council otherwise determine be requisite.

(2) The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

26. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force or any byelaw thereunder. As to plans deposited with Council.

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What to be
deemed new
buildings.

27. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation ;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the district into a building which had it been originally erected in its converted form would have been within the operation of those byelaws ;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than a dwelling-house ;

The making of any addition to an existing building by raising any part thereof or making any projection therefrom but so far as regards such addition only ; and

The roofing or covering over of an open space between walls or buildings ;

shall for all the purposes of this Part of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

Temporary
or movable
buildings.

28.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and sections of the proposed buildings drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surrounding of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within one month after the delivery of the plans and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plans sections and specification or after the disapproval of the Council or before the

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expiration of the said one month without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty of the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section:—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district with respect to new buildings and any tent not remaining for more than seven days;
- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion; and
- (C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light.

29. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such structure.

Power to
sell materials
of temporary
buildings.

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Council
may require
enlarged
sewer.

30. If in any street the Council for the purpose of main drainage or otherwise shall require a larger sewer or drain to be made than they consider necessary for the ordinary sewerage or drainage of such new street the person laying out such new street shall construct such enlarged sewer or drain in accordance with the requirement of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

For pre-
venting soil
and sand
from being
washed into
streets.

31. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable :

Provided that this section shall not apply to any lands of an agricultural character.

Trees or
shrubs over-
hanging
streets and
footpaths.

32. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

Dangerous
places to be
repaired or
enclosed.

33. With respect to the repairing or enclosing of dangerous places the following provisions shall have effect (namely) :—

- (1) If any building wall steps structure or other thing or any well excavation reservoir pond stream dam or bank on any land or place is in the opinion of the Council for want of sufficient repair protection or enclosure dangerous to the passengers along any street or footpath the Council may order the owner within the period specified in such order

to repair remove protect or enclose the same so as to prevent any danger therefrom: A.D. 1903.

- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Council may cause such works as they think proper to be done for effecting such repair removal protection or enclosure and the expenses thereof shall be payable by the owner and may be recovered summarily.

34. In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Council may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Council may if they think fit execute such repairs and the expenses thereof shall be recoverable summarily by the Council from the owners in default. As to urgent repairs to private streets.

35. The Council may make byelaws with respect to the materials with which new buildings shall be constructed and with respect to the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings. Byelaws as to building materials.

36. Nothing contained in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) or private road or station yard belonging to any railway company and used by such company as a part of or in connection with their railway. Exemption for railway property.

PART VI.

SANITARY PROVISIONS.

37. If any urinal or other sanitary convenience now or hereafter opening on any street shall in the opinion of the Council be so placed or constructed as to be a nuisance or offensive to public decency the Council by notice in writing may require the owner to remove such urinal or convenience Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings. Council may require removal of urinals.

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Urinals to
be attached
to refresh-
ment rooms.

38. Where any inn public-house beerhouse eating-house or other place of public entertainment other than a refreshment room at a railway station built before or after the passing of this Act has no urinal belonging or attached thereto the Council may by notice in writing require the owner of such inn public-house beerhouse eating-house or other place of public entertainment to provide and maintain on the premises a proper and sufficient urinal or urinals. Any person who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

Public con-
veniences
and lava-
tories.

39. The powers of the Council under section 39 of the Public Health Act 1875 and section 20 of the Public Health Acts Amendment Act 1890 shall extend to authorise them to provide and maintain in proper and convenient situations sanitary conveniences and lavatories in or under any street repairable by the inhabitants at large for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary conveniences (other than a urinal) or of any lavatory so provided and the Council may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and lavatories for such periods (not exceeding three years) and upon and subject to such terms and conditions as they may think fit.

Reconstruc-
tion of drains
to require
approval of
surveyor.

40. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws and regulations relating to the drainage of new buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

Provision as
to houses
without a
proper water
supply.

41. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Improper
cisterns.

42. Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health shall be deemed a nuisance within the meaning of the Public Health Act 1875.

[3 EDW. 7.] *Wood Green Urban District Council* [Ch. ccxxiv.]
Act, 1903.

43. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owner or owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be borne by the owner or apportioned between the owners or occupiers of such houses in such manner as the Council shall determine and if executed by the Council may be recovered by the Council from such owner or owners or occupiers in a summary manner before a court of summary jurisdiction :

A.D. 1903.

Council may order houses &c. to be drained by a combined operation.

Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council.

44. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

45. If a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he show that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds :

Improper construction or repair of watercloset or drain.

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he prove to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

PART VII.

INFECTIOUS DISEASE.

46. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the

Infected person not to carry on business.

[Ch. ccxxiv.] *Wood Green Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such a manner as to be likely to spread such infectious disease within the district and if he does so he shall be liable to a penalty not exceeding forty shillings.

Penalty on guardian permitting infected child to attend school.

47. No person being the parent or having care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from a medical practitioner or the medical officer a certificate (for which if application is made to him the medical officer shall make no charge) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Principals of schools to furnish lists of scholars.

48. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school (or if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith send notice thereof to the medical officer and shall furnish to the Council at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five scholars named therein.

Disinfection of clothes.

49. Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Filthy and dangerous articles to be purified.

50.—(1) Where on the certificate of the medical officer surveyor or inspector of nuisances it appears to the Council that any articles in any house or part thereof are in such a filthy and

[3 Edw. 7.] *Wood Green Urban District Council* [Ch. ccxxiv.]
Act, 1903.

dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may if they think fit cause any such articles in any such house or part thereof to be cleansed or purified or they may destroy the same. A.D. 1903.

(2) If any owner suffer any unnecessary damage the Council shall compensate him for the same and the Council shall also reasonably compensate the owner for any articles destroyed.

51. No person shall return to any public library or circulating library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the inspector of nuisances who shall cause the same to be destroyed or to be disinfected and then returned to the librarian. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings. Protection against infection of books in public libraries.

52. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the Council or the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings. Dairymen to notify infectious disease among their servants.

53. If the medical officer shall have reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to which he has within such six weeks supplied milk within the district and the Council shall pay for such last-mentioned list the sum of sixpence and after the rate of sixpence for every twenty-five words contained therein but no such payment shall exceed three shillings. Every person failing to comply with any request of the medical officer under this section shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. Medical officer may require dairymen to furnish lists of sources of their supply of milk and of their customers.

[Ch. ccxxiv.] *Wood Green Urban District Council* [3 Edw. 7.]
Act, 1903.

A.D. 1903.

Compensa-
tion to dairy-
men.

54. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and such compensation may be paid out of the district fund or general district rate.

Compensa-
tion to per-
sons ceasing
employment.

55. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Council may
provide
nurses.

56. The Council may provide or contract with any person or persons to provide nurses for attendance upon persons suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse provided by them.

For regu-
lating manu-
facture and
sale of ice
creams &c.

57. Any person being a manufacturer or vendor of or merchant or dealer in ice creams or other similar commodity who within the district—

(A) Causes or permits ice creams or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give immediate notice thereof to the medical officer for the district ;

shall be liable for every such offence on summary conviction to a penalty not exceeding five pounds.

Notice and
execution of
provisions
of this Part
of Act.

58.—(1) The Council shall cause public notice to be given of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

(2) This Part of this Act may be carried into execution by a committee of the Council acting on behalf of the Council.

PART VIII.

A.D. 1903.

MILK PROVISIONS.

59. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds. Penalty for selling milk of diseased cows.

60. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds. Penalty on failing to isolate diseased cows.

61. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is. Obligation to notify cases of tuberculosis.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

62.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district. Power to take samples of milk.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

63.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take Power to inspect cows and to take samples of milk.

[Ch. ccxxiv.] *Wood Green Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to the Council and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council.

(C) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has

[3 EDW. 7.] *Wood Green Urban District Council* [Ch. ccxxiv.]
Act, 1903.

been changed or that it is not likely to cause tuberculosis to persons residing in the district. A.D. 1903.

(g) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(h) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

64. The dairyman may appeal against an order of the Council under this Part of this Act or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court. Appeal.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

65. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order. Compensation.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

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A.D. 1903.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Notice of provisions of this Part of Act.

66. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix.

Procedure.

67. Offences under this Part of this Act may be prosecuted and penalties may be recovered by the Council before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

Expenses and execution of this Part of Act.

68.—(1) All expenses incurred by the Council in carrying into execution the provisions of this Part of this Act shall be chargeable upon the general district rate and the Council may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the district Provided that no such test shall be applied except with the previous consent of the owner of such cow.

(2) This Part of this Act may be carried into execution by a committee of the Council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the Council.

PART IX.

FINANCE.

Power to Council to borrow.

69. The Council may from time to time independently of any other borrowing power borrow at interest on the following securities

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Act, 1903.

such sums as shall be requisite for the following purposes (that is to say) :— A.D. 1903.

(A) For paying the costs of this Act as hereinafter defined on the security of the district fund and general district rate the sum necessary for that purpose :

(B) For the purposes of the section of this Act of which the marginal note is "Acquisition of rights in and power to appropriate part of Wood Green Common for erection of a dust destructor" and for the erection of a dust destructor and of other buildings connected therewith or subsidiary thereto with all proper machinery such sum as the Local Government Board may sanction :

And in calculating the amount which the Council may borrow under the provisions of any other enactment the amount which the Council may borrow under or for the purposes of this Act shall not be reckoned and the power of the Council of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

70. The provisions of sections 236 237 238 and 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act. Provisions as to mortgages.

71. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss or non-application of the money lent or of any part thereof. Protection of lenders from inquiry.

72. All moneys borrowed by the Council under the authority of this Act without the sanction of the Local Government Board may be borrowed for any periods not exceeding the periods hereinafter respectively mentioned (in this Act referred to as "the prescribed period") (that is to say) :— As to repayment of borrowed money.

As regards moneys borrowed for the purpose (A) mentioned in the section of this Act whereof the marginal note is "Power to Council to borrow" five years from the date or dates of borrowing the same :

And all moneys borrowed by the Council under the authority of this Act with the consent of the Local Government Board may

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A.D. 1903. — be borrowed for such term as the Local Government Board may prescribe.

Mode of
payment off
of money
borrowed.

73. The Council shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six month if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

74.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

- (A) By payment to the fund throughout the prescribed periods of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called “a non-accumulating sinking fund”; or
- (B) By payment to the fund throughout the prescribed periods of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed

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periods a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1903.
—

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the

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A.D. 1903. — prescribed periods the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed periods the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Return
respecting
sinking fund
to Local
Government
Board.

75.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

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(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903. —

76. If the Council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be affected by reason of such re-borrowing. Power to re-borrow.

77.—(1) The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another. Power to borrow under Local Loans Act 1875.

(2) Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the same funds rates and revenues as they would be charged upon and paid out of if raised by mortgage under this Act and such funds rates and revenues shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

(3) Every such loan shall be discharged within the prescribed period.

(4) The section of this Act of which the marginal note is "Sinking fund" shall apply to any sinking fund provided by the

[Ch. ccxxiv.] *Wood Green Urban District Council* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — Council for the repayment of any moneys borrowed by them under the Local Loans Act 1875 in lieu of the provisions of section 15 of that Act.

Application of money borrowed. 78. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Council not to regard trusts. 79. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given or adopted under the authority of this Act by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Council may use lands. 80. The Council may with the consent of the Local Government Board and subject to such conditions as that Board may prescribe appropriate and use for any of the purposes of this Act or any other Acts any lands for the time being vested in them as an urban district council or otherwise and not required for the purposes for which the same were acquired but nothing in this section shall authorise the Council to create or permit any nuisance.

If the Council so appropriate any lands they shall charge the account for which the said lands are appropriated with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

Audit of accounts. 81. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Expenses of executing Act. 82. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as may be paid out of borrowed moneys) shall be paid out of the district fund or general district rate :

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Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable. A.D. 1903.

PART X.

MISCELLANEOUS.

83. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall apply to all byelaws made by the Council under the powers of this Act. General provisions as to bye-laws.

84.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred on them or the giving of any consents under this Act and their inspectors shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) All costs incurred by the Local Government Board (including such reasonable sum not exceeding three guineas a day as that Board may determine for the service of any inspector) in relation to the duties imposed on that Board under this Act shall be paid by the Council.

85. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district. Informations by whom to be laid.

86.—(1) In case the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under Parts V. and VI. of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council Penalty on occupiers refusing execution of Act.

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A.D. 1903. to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of such refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

(2) If the occupier of any premises when requested by or on behalf of the Council for the purpose of any requirement under Parts V. and VI. of this Act to state the name of the owner of the premises occupied by him shall refuse or wilfully omit to disclose or wilfully misstate the same he shall (unless he shall show good cause to the satisfaction of the court for his refusal) be liable to a penalty not exceeding two pounds.

Evidence of
appointments
authority &c.

87. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman or the clerk shall be a *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authenti-
cation and
service of
notices &c.

88. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

As to appeal.

89. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any

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conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal. A.D. 1903.

90. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties.

91. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

92. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and subject to the provisions of the Police Act 1890 shall be carried by him to the credit of the district fund or to such other fund as the Council direct. Penalties to be paid over to treasurer.

93. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Compensation &c. how to be determined.

94. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

95. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges &c. not disqualified.

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Powers of
Act cumu-
lative.

96. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown
rights.

97. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Expenses
of Act.

98. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of owners and ratepayers aforesaid shall after taxation by the taxing officer of the House of Lords or House of Commons be paid by the Council out of moneys to be borrowed by the Council under this Act but may in the first instance be paid by the Council out of any of their rates or funds and moneys so paid shall be recouped by and charged to the moneys to be borrowed under this Act.

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The SCHEDULE referred to in the foregoing Act. A.D. 1903.

LANDS FOR DUST DESTRUCTOR.

A piece of land situate in the parish and urban district of Wood Green in the county of Middlesex containing one acre three roods and three perches or thereabouts being the Moat House and its appurtenances and the surrounding land now forming part of Wood Green Common and bounded on the south by the back walls of the gardens of "The Grove" on the north by Wood Green Common on the east by Western Road and on the west by lands belonging to the Great Northern Railway Company.

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